District Court of the First Circuit — THE JUDICIARY • STATE OF HAWAI'I
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FIRST CIRCUIT
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Dkt. 492 DOC

CASE NO. IDRC / IDSC / IDSS - 1RC19-1-3776

THIS DOCUMENT IS ☐ DENIED ☒ STRICKEN
(Correct and return with this sheet)

( ) Approved court form required
( ) Civil Number missing/incorrect
( ) Signature of filing Party/Attorney missing
( ) Filing Party/Attorney's name/address missing
(X) Certificate of Service incomplete/not attached/denied
( ) Insufficient number of copies
( ) Untimely/Unnecessary filing
( ) Caption incomplete/incorrect
( ) Leave of Court required
( ) Court date missing/incorrect
( ) Division incorrect/missing

JUDGMENT
( ) No disposition of all parties
( ) Notice of Entry of Judgment required
( ) Postage, addressed envelope missing

DEFAULT PROCEDURES
File: ( ) Ex Parte Motion for Default Judgment
( ) Declaration insufficient/unsupported by exhibits
( ) Declaration not based on direct personal knowledge
( ) Non-Hearing Motion For Default Judgment

ATTORNEY'S FEES/OTHER COSTS
( ) Itemize attorney's activities and hours
( ) Insufficient documentation/description/breakdown to award other costs

MOTION FOR ISSUANCE OF GARNISHEE SUMMONS AFTER JUDGMENT
( ) Garnishee Information sheet missing/outdated
( ) Non-Conclusory Declaration incomplete/insufficient
( ) Notice to Employer form missing
( ) "Current Amount Due" missing/incorrect
( ) Exhibit B not attached
( ) Judgment not attached

JUDGMENT/WRIT OF POSSESSION
( ) Writ of Possession Effective Date missing
( ) Missing/incorrect premises address

RETURN OF SERVICE
( ) Not Signed by serving officer/person
( ) Date/Address of service missing
( ) Title of document served missing
( ) Name of party served missing/incorrect
( ) Page 2 blank/incorrect/incomplete
( ) Mileage recoverable .40 cents per mile

OTHER
Rule 23 letter not submitted.

Thank you,

TIMOTHY E. HO

Judge TEH
10/20/26

For more information or assistance, please visit the District Court Ho'okele Service Center on the 3rd Floor or call (808) 538-5629.

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Attorneys for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS
OF MARINE SURF WAIKIKI, INC.,
BY ITS BOARD OF DIRECTORS

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Plaintiffs, vs. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC191003776 [Assumpsit] **ORDER DENYING DEFENDANT / COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]** HEARING: Date: October 5, 2026 Time: 8:30 a.m. Judge: Honorable Timothy E. Ho
NIKODEM PIKOR, Counterclaim Plaintiff, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Counterclaim Defendant.	

NIKODEM PIKOR, Third-Party Plaintiff, vs. THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation, Third-Party Defendant.	)

ORDER DENYING DEFENDANT / COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]

On August 24, 2026 [Dkt. 442], Defendant/Counterclaim Plaintiff NIKODEM PIKOR filed his Motion to Extend Time to File Appeal ("**Motion**"); on September 9, 2026, the Association of Apartment Owners of Marine Surf Waikiki, Inc. ("**the AOAO**") as Counterclaim Defendant opposed the Motion [Dkt. 453]; and on September 9, 2026, the AOAO as Plaintiff opposed the Motion, which came on for hearing via Zoom on October 5, 2026, at 8:30 a.m. before the Honorable Timothy E. Ho; James R. Ferguson, Esq. appeared on behalf of Counterclaim Defendant AOAO, Yun W. Kim, Esq. appeared on behalf of Plaintiff AOAO; and Amanda L. Dutcher, Esq. appeared and was excused and discharged as counsel by the Court from appearing on behalf of Defendant/Counterclaim Plaintiff Nikodem Pikor ("**Pikor**"), who was present and argued *pro se* at the hearing; and

The Court having heard the arguments of counsel and Pikor, having reviewed and considered the memoranda and declarations in support and in opposition, and being fully advised in the premises, finds that the Motion to Extend Time to File Appeal was untimely; and therefore,

IT IS HEREBY ORDERED, ADJUDGED AND DECREED that Counterclaim Defendant/Counterclaim Plaintiff NIKODEM PIKOR'S Motion to Extend Time to File Appeal filed August 24, 2026 [Dkt. 442] is hereby DENIED.

DATED: Honolulu, Hawaii, _____.

_____
JUDGE OF THE ABOVE-ENTITLED COURT

APPROVED AS TO FORM:

_____
Defendant/Counterclaim Plaintiff NIKODEM PIKOR

/s/
TERRANCE M. REVERE, ESQ.
AMANDA L. DUTCHER, ESQ.
Former/Withdrawn Attorneys for Defendant/Counterclaim Plaintiff NIKODEM PIKOR

/s/ James R. Ferguson
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/s/ Yun W. Kim
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YUN W. KIM
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ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS

ORDER DENYING DEFENDANT/COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]; *AOAO Marine Surf Waikiki, Inc. v. Nikodem Pikor, et al.*, Civ. No. 1RC191003776, Honolulu Dist. Court of the First Circuit, State of HI